

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Shahid Bilal Hassan
Mr. Justice Shakeel Ahmad

Civil Petitions No. 4036 of 2022, 1860 of 2024, and 4867 of 2024 an CMA No. 4712 of 2024.

(Against the judgments/ orders dated 27.09.2022, 24.04.2024, and 16.09.2024, passed by the Peshawar High Court, Peshawar, in FAOs No. 63-P of 2019, 31-P of 2024, and CR No. 706-P of 2024, respectively)

Jehanzeb Suhail ...Petitioner(s)
(in C.Ps. 4036/2022 & 1860/2024, and CMA No. 4712/2024)

Asif Aftab Kadir *(in C.P.4867/2024)*
Versus

Asif Aftab Qadir & others
(in C.Ps.4036/2022 & 1860/2024, and CMA No. 4712/2024)

...Respondent(s)

Malik Habib Ullah & others
(in C.P.4867/2024)

For the Petitioner(s) : Mr. Fazal Karim, ASC *(via VL from Peshawar, in C.Ps. 4036/2022 & 1860/2024, and CMA No. 4712/2024)*

Mr. Waqar Hussain, ASC *(in CP No. 4867/2024)*

For Respondent(s) : Mr. Waqar Hussain, ASC *(for resp. No.1 in CPs No. 4036/2022 and 1860/2024, and CMA No. 4712/2024)*

Mr. Altaf Ahmed, ASC *(via VL from Peshawar, for resp. No.1 in CP No. 4867/2024)*

Mr. Junaid Iftikhar Mirza, ASC,
alongwith Qazi Shehryar Iqbal, AOR
(for resp.No.4 in CP No. 4867/2024)

Date of Hearing : 14.01.2026

ORDER

SHAKEEL AHMAD, J.

Civil Petitions No. 4036 of 2022 & 1860 of 2024:

Shortly stated, the respondent-landlord sought eviction of the petitioner-tenant on two grounds, namely, *bona fide* personal use and occupation and subletting. Upon completion of the pleadings, issues were framed, and both parties led evidence in support of their respective cases. The Additional Rent Controller, Peshawar Cantonment ("**the Controller**"), negatived both grounds for eviction. However, the Controller enhanced the monthly rent of the demised premises to Rs.7,000 per month and, while doing so, dismissed the eviction application filed by the respondent landlord.

2. The Peshawar High Court, Peshawar (**"the High Court"**) in FAO No. 63-P of 2019, instituted by the respondent-landlord, upheld the decision of the Controller, holding that the respondent-landlord was not entitled to evict the petitioner-tenant on the grounds of *bona fide* personal need or subletting, as he had failed to establish either ground. However, while disposing of the appeal, the High Court enhanced the rent of the suit property from Rs. 7,000/- to Rs. 70,000/- per month. Subsequently, relying on this order, the respondent-landlord filed a fresh eviction application before the Controller, alleging solely that the petitioner had neither paid the post-enhancement rent nor deposited the rent directed by the High Court in its order dated 27.09.2022. Upon consideration of the petitioner-tenant's reply, the Controller, invoking Section 17(9) of the Cantonments Rent Restriction Act, 1963 (**"the Act"**), passed eviction order against the petitioner-tenant. The said order of the Controller was upheld by the High Court vide judgment dated 24.04.2024 in FAO No. 31-P of 2024.

3. Heard both sides and record perused.

4. It is an admitted fact that the respondent-landlord initially filed an ejectment application before the Cantonment Rent Controller on the grounds of (i) *bonafide* personal need and (ii) subletting. After a full-fledged trial, the Controller dismissed the application. The respondent-landlord challenged this order before the High Court. While adjudicating the legality of the Controller's dismissal, the High Court disposed of the appeal by fixing the fair rent at an exorbitant rate, even though fixation of fair rent was neither pleaded, nor framed as an issue, nor supported by evidence. It is settled that exclusive jurisdiction to fix fair rent vests in the Controller under Section 7 of the Act, which provides as follows:-

"7. Determination of fair rent. (1) *The Controller shall, on an application by the tenant or landlord of building, fix fair rent for such building after holding such enquiry as he may think fit.*"

A plain reading of the *ibid* Section reflects that it confers exclusive jurisdiction in the Controller to determine fair rent after conducting an inquiry and recording evidence. While hearing an appeal against the dismissal of the ejectment application, the High

Court could affirm, reverse, set aside, or modify the findings of the Controller. However, it could not, in any circumstances, assume the original jurisdiction of the Controller. An appellate forum cannot exercise original jurisdiction unless expressly conferred by the Statute. Accordingly, the fixation of enhanced rent by the High Court was without lawful authority and in direct conflict with Section 7 of the Act. In doing so, the High Court exceeded the pleadings; neither party had sought fixation of fair rent, no issue had been framed, and no evidence had been led on this point.

5. Adverting to the second ejectment application, the record reflects that the ejectment order is wholly founded upon the illegal fixation of rent. It is well settled that where the foundation is unlawful, the superstructure built upon it cannot stand. In this context, reference may be made to the cases of *Yousaf Ali*¹, the *Executive District Officer (Education)*², and *Rehmatullah*³.

6. It is an admitted fact that the respondent-landlord had failed in the earlier ejectment application. By obtaining an illegal enhancement of rent, an artificial default was created to secure an eviction order through a fresh application, premised on the alleged non-payment under the earlier order. Consequently, as the fixation of fair rent by the High Court in the prior order is void, the purported default is artificial. The subsequent ejectment order, therefore, lacks a lawful foundation and any possession taken under it is itself void. Both the order fixing fair rent and the ensuing eviction order are illegal, void, and unsustainable.

7. In the above circumstances, these petitions are converted into appeals and allowed. The orders/ judgments of the lower *fora* are set aside. The parties shall remain bound by the original rent until it is revised by the competent forum in accordance with Section 7 of the Act. Possession shall be restored forthwith to the petitioner-tenant if taken pursuant to an eviction order passed by the Controller. No order as to costs. The listed CMA also stands disposed of.

Civil Petition No. 4867 of 2024

We have heard learned counsel for the parties and note that being aggrieved by the ad-interim order passed by the trial Court, the petitioner preferred an appeal and thereafter filed a

¹ *Yousuf Ali v. Mohammad Aslam Zia* (PLD 1958 SC (Pak) 104)

² *Executive District Officer (Education), Rawalpindi v. Mohammad Younas* (2007 SCMR 1835)

³ *Rehmatullah & others v. Saleh Khan & others* (2007 SCMR 729)

revision petition before the High Court, which was dismissed. The record reflects that while dismissing the revision petition, the High Court directed the trial Court to decide the application for the grant of interim relief/temporary injunction strictly in accordance with law and expeditiously. In these circumstances, we find no illegality, irregularity, or jurisdictional defect in the impugned orders passed by the *fora* below, calling for interference. Consequently, this petition is dismissed, and leave declined. No order as to costs.

Announced in Open Court at Islamabad on 18/02/2026.

Approved for reporting

Zia/ *